

25VECV04359 25VECV04359

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DENISE MORATAYA-PACQUING vs RALPHS GROCERY COMPANY, et al.

June 29, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Dismiss

I.

Background

On August

4, 2025, Plaintiff Denise Morataya-Pacquing ("Plaintiff") filed a complaint against Defendants Ralphs Grocery Company ("Ralphs"), the Kroger Co. ("Kroger"), Doe Employee; and Does 1 to 25 alleging two causes of action: (1) premises liability; and (2) general negligence.

On April

30, 2026, Ralphs filed the instant motion to dismiss.

On May

13, 2026, Plaintiff filed her opposition.

To date,

Ralphs has not filed a reply.

On May

27, 2026, the Court continued the hearing on Ralph's motion to allow for compliance with the subject discovery requests.

There have been no new filings since the 5/27 hearing.

II. Legal Standard

Cal. Code of Civ. Proc. § 2023.030

permits the Court, in its discretion, to impose the following types of terminating sanctions against anyone engaging in conduct that is a "misuse of the discovery process":

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any part of the action, of that party.

(4) An order rendering a judgment by default against that party.

(CCP § 2023.030(d).)

Conduct that is a "misuse of the discovery process" includes failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (CCP § 2023.010(d) and (g).) "Imposition of sanctions for misuse of discovery lies within the trial court's discretion, and is reviewed only for abuse." (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) "The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery[.]" (Id. at 992.) Sanctions should be tailored to the harm created by the withheld discovery and should not be used as punishment. (Ibid.) The court should also consider whether the discovery misconduct was "willful" and whether the requesting party was prejudiced by the other's failure to comply. (Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns (1992) 7 Cal.App.4th 27, 37.) Courts have held that terminating

sanctions are warranted when a party repeatedly fails to propound adequate discovery responses, even after the court imposed monetary sanctions. (*Liberty Mutual Fire Ins. Co. v. LcL*

Administrations, Inc. (2008) 163

Cal.App.4th 1093.) For example, in *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, the Court of Appeal held that five motions to compel created a record “replete with evidence of [appellant’s] failures to answer discovery requests.” (*Id.* at 279–280.)

III. Discussion

Ralphs argues for terminating

sanctions on the grounds that Plaintiff failed to comply with the Court’s March 30, April 7, and April 9, 2026, discovery orders. (See Motion at 2:8-14.) On these dates, the Court ordered Plaintiff to provide responses to Ralphs’s various discovery requests. (See March 30, April 7, and April 9, 2026, Orders.) Ralphs argues that, at the date of filing this motion, Plaintiff had failed to comply with these orders. (Motion at 5:15-18.)

In opposition, Plaintiff argues

that her failure to serve further responses “was the result of a culmination of unexpected life events in Plaintiff’s life over the last 5 months including, but not limited to, Plaintiff’s full-time responsibility for caring for her special needs child combined with Plaintiff’s own medical issues that have arisen (not related to this case) that required a recent surgery. Plaintiff’s health has improved and Code-compliant verified responses are being prepared and will be served forthwith prior to the hearing on this Motion.” (Opposition at 2:3-12.)

Based on the foregoing, Plaintiff’s

failure to comply with the Court’s orders does not yet create a record “replete with evidence of [Plaintiff’s] failure to answer discovery requests.” (See *Mileikowsky*, *supra*, 128 Cal.App.4th at 279-280.) The Court finds that Plaintiff’s failure to comply appears from good cause and Plaintiff is making effort to comply with the Court orders. (See Opposition at 2:3-12.) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing [terminating sanctions].” (*Mileikowsky*,

supra, 128 Cal.App.4th at 279-280.) Ralphs does not show that less severe sanctions would fail to produce Plaintiff's compliance.

Nonetheless, considering the possible prejudice to Ralphs, the Court reminds Plaintiff of her obligation to comply with the discovery statutes and previous court orders. The Court will hear from the parties as to any further responses that may have been served since the previous hearing before determining the appropriate sanction and/or Order to Show Cause.

IV.

Conclusion

Based on the foregoing, Ralphs's motion to dismiss and request for sanctions are DENIED without prejudice.

Moving party to give notice.